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LINE: 1

22-CIV-05378

TIMOTHY W. SILVA VS. GEORGE M. SILVA, JR., ET AL.

TIMOTHY W. SILVA
GEORGE M. SILVA, JR.

DONALD J. DOWLING
PRO/PER

**GEORGE M. SILVA, JR.'S MOTION TO STAY JUDGMENT
TENTATIVE RULING:**

For the reasons stated below, Defendants' Motion to Stay Entry of Judgment is **DENIED**.

Defendants have not shown that this Court lacks subject-matter jurisdiction or that the later-filed/proposed probate petition requires a stay of a civil action already tried to decision. Defendants' arguments concerning excluded evidence, trial time, pretrial procedures, and the absence of a court reporter are, at most, claims of trial error; they do not deprive the Court of jurisdiction or justify staying entry of judgment.

As to the court-reporter issue, the Court finds that Defendants did not inform the Court at trial that they had a fee waiver or request a court reporter on that basis; they stated only a preference to have a court reporter. The belated assertion of a fee waiver therefore does not establish that the Court denied a properly presented request for a fee-waiver reporter, and it does not provide grounds to stay judgment.

Plaintiff's request for judicial notice is granted as to the existence and legal effect of the court records, but not as to the truth of disputed factual assertions contained in those records.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

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LINE: 2

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TIMOTHY W. SILVA
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DONALD J. DOWLING
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STATEMENT OF DECISION
TENTATIVE RULING:

This matter came before the Court for court trial on Plaintiff Timothy Silva's claim to quiet title to the real property commonly known as the Canyon property. Defendants George Silva and Karen Fagundes oppose Plaintiff's claim and contend that Plaintiff fraudulently acquired title to the property.

Having considered the testimony, admitted exhibits, prior pleadings, prior rulings, and arguments of the parties, the Court finds in favor of Plaintiff.

BACKGROUND

Plaintiff, George Silva, and Karen Fagundes are siblings. The Canyon property was originally held in connection with the parties' late mother and/or her trust. The siblings each held an equal beneficial or ownership interest in the property. George Silva and Karen Fagundes served as trustees or successor trustees in connection with the property.

Plaintiff testified that he acquired the siblings' interests by paying each sibling for his or her share. Plaintiff testified that each sibling received approximately \$47,000. Plaintiff contends that his acquisition of title was part of a buyout transaction and that Defendants' present adverse claims are unsupported by the record.

Defendants contend that Plaintiff acquired title through fraud. George Silva testified that he did not receive money for the property, did not know what was occurring at the title company, and that his signature was forged. Karen Fagundes testified that she could not remember receiving \$47,000, could not remember signing documents, and may have signed documents but did not know. To the extent Karen later denied receiving payment, the Court does not find that testimony sufficient to change the result for the reasons stated below.

LEGAL STANDARD

A quiet title action may be brought to establish title against adverse claims to real property or an interest in real property. (Code Civ. Proc., § 760.020.) The court must examine the evidence of Plaintiff's title and Defendants' adverse claims and render judgment according to the evidence and the law. (Code Civ. Proc., § 764.010.)

Plaintiff bears the burden of establishing his title. Defendants bear the burden of proving facts essential to their fraud, forgery, nonpayment, or invalidity theories. (Evid. Code, § 500.) In evaluating credibility, the Court may consider the witness's interest in the matter, motive, bias, prior inconsistent statements, ability to recollect, attitude toward the action, and the existence or nonexistence of facts testified to. (Evid. Code, § 780.)